

S.K.Janani vs S.Vivekraj on 12 December, 2022

Author: S.M.Subramaniam

Bench: S.M.Subramaniam

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED : 12.12.2022

CORAM

THE HONOURABLE MR.JUSTICE S.M.SUBRAMANIAM

Tr.C.M.P.No.771 of 2022

and

C.M.P.No.13139 of 2022

S.K.Janani
W/o.S.Vivekraj

Vs.

S.Vivekraj
S/o.D.Subramanian

Prayer: Transfer Civil Miscellaneous Petition filed under Section 2 Civil Procedure Code, to withdraw the petition in M.O.P.No.95 of 2022 pending on the file of Family Court, Krishnagiri and transfer the same to the file of Sub Court, Sathyamangalam, Erode District, to be tried along with H.M.O.P.No.64 of 2022 pending on the file of Sub Court, Sathyamangalam, Erode District.

For Petitioner : Mr.J.Titus Enock
For Respondent : Mr.C.Prabakaran

ORDER

This petition has been filed seeking transfer of M.O.P.No.95 of 2022 pending on the file of Family Court, Krishnagiri, to the file of Sub Court, <https://www.mhc.tn.gov.in/judis> Sathyamangalam, Erode District, to be tried along with H.M.O.P.No.64 of 2022.

2. The marriage between the petitioner and the respondent was solemnised on 12.09.2019 as per the Hindu Rites and Customs and through the wedlock, a girl child was born, who is now aged 2 years. Due to misunderstanding, the petitioner and the respondent are living separately. The girl child is living with the petitioner. The respondent filed M.O.P.No.95 of 2022 before the Family Court, Krishnagiri, for divorce. The petitioner filed H.M.O.P.No.64 of 2022 before the Sub Court, Sathyamangalam, Erode District, seeking restitution of conjugal rights.

3. Learned counsel for the petitioner submitted that the petitioner is now residing along with her parents at Sathyamangalam and therefore, she is not in a position to travel and contest the case filed by the respondent before the Family Court, Krishnagiri. The petitioner has to take care of the minor child and thus, the case is to be transferred. <https://www.mhc.tn.gov.in/judis>

4. Learned counsel for the respondent raised an objection by stating that the petitioner is capable of travelling and contesting the case, which has been instituted by the respondent before the Family Court, Krishnagiri. The respondent states that he is working at Bangalore and therefore, he would not be in a position to travel and contest the case at Sathyamangalam, in the event of transfer. That apart, the respondent is suffering from back pain and cannot travel for a long distance. The respondent states that he is taking treatment continuously from March'2021 onwards and the doctors advised him not to travel long distance. It is contended that the petitioner is arrogant and humiliated the family of the respondent.

5. The allegations raised by the respondent deserves no consideration in the present transfer petition. All such allegations are to be adjudicated before the Court while dealing with the divorce case and the case filed by the petitioner for restitution of conjugal rights. The fact remains that the petitioner is taking care of the minor girl child and she is residing along with her parents. The place of wife is the preferable place for conducting trial of matrimonial cases and thus, the petition is to be considered. <https://www.mhc.tn.gov.in/judis>

6. The principles regarding transfer petitions, more specifically in the matter of matrimonial cases, are well settled through the three decisions of the High Court of Madras, in the following cases:-

(i) The Hon'ble Division Bench of the High Court of Madras in W.A.No.1181 of 2009, dated 09.07.2010, in paragraphs-21 and 22, has observed as under:-

“21. The domicile or citizenship of the opposite party is immaterial in a case like this. In case the marriage was solemnized under Hindu Law marital relationship is governed by the provisions of the Hindu Marriage Act. Therefore, Section 19 has to be given a purposeful interpretation. It is the residence of the wife, which determines the question of jurisdiction, in case the proceeding was initiated at the instance of the wife.

22. While considering a provision like Section 19 (iii-a) of the Hindu Marriage Act, the objects and reasons which prompted the parliament to incorporate such a provision has also to be taken note of. Sub Clause (iii-a) was inserted in Section 19 with a specific purpose. Experience is the best teacher. The Government found the difficulties faced by women in the matter of initiation of matrimonial proceedings. The report submitted by the Law Commission as well as National Commission for Women, underlying the need for such amendment so as to enable the women to approach the nearest jurisdictional court to redress their matrimonial grievances, were also taken note of by the Government. Therefore such a beneficial provision meant for the women of our Country should be given a meaningful interpretation by

Courts.”

(ii) In yet another case in Tr.CMP.Nos.138 and 139 of 2006, dated 30.08.2006, the High Court of Madras has considered the following judgments of Hon'ble Supreme Court of India:-

<https://www.mhc.tn.gov.in/judis> “(1) In the case of Mona Aresh Goel vs. Aresh Satya Goel [(2000) 9 SCC 255], when the wife pleaded that she was unable to bear the traveling expenses and even to travel alone and stay at Bombay, the Supreme Court ordered transfer of proceedings.

(2) In the case of Geeta Heera vs. Harish Chander Heera [(2000) 10 SCC 304], the Hon'ble Supreme Court has held that where the petitioner's wife has pleaded lack of money, the same has to be considered.

(3) In the case of Lalita A.Ranga vs. Ajay Champalal Ranga [(2000) 9 SCC 355], the wife has filed a petition to transfer the proceedings initiated by the husband for divorce, at Bombay. The place of residence of the wife was at Jaipur, Rajasthan. In that case, the petitioner is having a small child and that she pleaded difficulty in going all the way from Jaipur to Bombay to contest the proceedings from time to time. Considering the distance and the difficulties faced by the wife, the Supreme Court has allowed the transfer petition.

(4) In a decision in Archana Singh vs. Surendra Bahadur Singh [(2005) 12 SCC 395], the wife has sought for transfer of matrimonial proceedings and a divorce petition has been filed by the respondent's husband at Baikunthpur to be transferred to Allahabad, where the petitioner's wife was residing, on the ground that it would be difficult for her to undertake such long distance journey, particularly in circumstances, in which she finds that the proceedings under 5 Section 125 Cr.P.C. was already pending before the Family Court, Allahabad. Considering the difficulties faced by the wife and also the long distance journey, the Honourable Supreme Court was pleased to order transfer of the proceedings to Allahabad.”

(iii) In a decision made in TR.CMP(MD)No.108 of 2010, dated 03.03.2011, the Madurai Bench of Madras High Court, in paragraph-18, has observed thus:-

“18. It is true that section 19 of the Hindu Marriage Act, has been amended by insertion of proviso of (iii)(a) to section 19. Of Course, this amended section 19(iii)(a) gives special preference to the wife to file a petition or defending the case of the husband before <https://www.mhc.tn.gov.in/judis> the Court within whose jurisdiction she resides. The intention of the Legislator is to safe-guard the interest and rights of the women, who are being subjected to harassment and cruelty. But this special preference conferred under section 19(iii)(a) of the Hindu Marriage Act shall not be used to wreck vengeance on the husband. There must be a justifiable cause to select

the jurisdiction of the Court where she resides.”

7. Considering the facts and circumstances, the proceedings in M.O.P.No.95 of 2022 pending on the file of Family Court, Krishnagiri, stands transferred to the file of Sub Court, Sathyamangalam, Erode District, to be tried along with H.M.O.P.No.64 of 2022. The Family Court, Krishnagiri, is directed to transmit the case papers to the Sub Court, Sathyamangalam, Erode District, within a period of four (4) weeks from the date of receipt of a copy of this order.

8. Learned counsel for the respondent raised an apprehension that the family members of the petitioner may not allow him to attend the case peacefully in the Court premises at Sathyamangalam.

9. Learned counsel for the petitioner made a submission that such apprehension is baseless. However, it is made clear that the petitioner shall not indulge in any such illegal activity or otherwise prevent the respondent from attending the case in a peaceful manner. In the event of any such <https://www.mhc.tn.gov.in/judis> untoward incident happens, the respondent is at liberty to lodge a police complaint immediately and on such complaint, the jurisdictional police shall initiate all appropriate actions against the persons in accordance with law.

10. In view of the judgment of the Hon'ble Supreme Court of India in the case of Rajnesh vs. Neha [(2021) 2 SCC 324], this Court has to protect the interest of the minor child and in this regard, during the course of arguments, the learned counsel for the respondent fairly and responsibly made a submission that the respondent will pay a sum of Rs.5,000/- p.m. to the petitioner for the purpose of meeting out the expenditure of his own child.

11. The respondent Mr.S.Vivekraj, S/o.D.Subramaniam is present before this Court and he also has given an undertaking that he will pay the interim maintenance of Rs.5,000/- per month to maintain his daughter without fail.

<https://www.mhc.tn.gov.in/judis> S.M.SUBRAMANIAM, J.

gm

12. In view of the said undertaking, the respondent is directed to pay a sum of Rs.5,000/- p.m. [Rupees Five Thousand only] towards maintenance amount for the welfare of the minor child and such maintenance amount to be paid to the petitioner, who, in turn, has to spend the same only for the welfare of the child.

With the above direction, the Transfer Civil Miscellaneous Petition stands allowed. No costs. Consequently, the connected miscellaneous petition is closed.

12.12.2022 Index : Yes Speaking order gm To

1.The Family Court, Krishnagiri.

2.The Sub Court, Sathyamangalam, Erode District.

<https://www.mhc.tn.gov.in/judis>